

# Worksheet — 1.5 Legal, Moral, Cultural & Ethical Issues — ANSWER SHEET

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*Separate answer sheet / mark scheme — keep for marking.*

## Answer key

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### Activity 1

1 = C · 2 = D · 3 = B · 4 = A

### Activity 2 — correct Act for each scenario

1. **Data Protection Act 2018 / GDPR** — breaches *storage limitation* (keeping data longer than needed).
2. **Computer Misuse Act 1990 — Offence 1** (unauthorised access; nothing was changed and there was no further intent).
3. **Copyright, Designs & Patents Act 1988** — distributing a copyrighted work without a licence (piracy).
4. **Computer Misuse Act 1990 — Offence 2** (unauthorised access *with intent* to commit a further offence, i.e. theft). *Accept a note that the DPA may also apply to the bank's data handling.*
5. **Regulation of Investigatory Powers Act 2000 (RIPA)** — interception by a public body without proper authorisation.
6. **Computer Misuse Act 1990 — Offence 3** (unauthorised modification — encrypting/altering files).

### Activity 5 — model points

1. **Personal data:** information relating to an identifiable living individual (e.g. name, address, ID number, location, online identifiers).
2. **Data subject:** the living individual whom the personal data is about.
3. **Copyright** protects the *expression* of original works automatically (no registration), giving the rights-holder control over copying/distributing/adapting. A **patent** protects an *invention*, is **not** automatic — it must be applied for and granted.
4. **Digital divide:** the gap between those who have access to technology, the internet and the skills to use it, and those who do not (often poorer, rural, elderly or disabled people).
5. **GDPR** is the EU regulation; the **DPA 2018** is the UK law that implements GDPR in domestic law.

### Activity 4 — model essay plan

**FOR (does more harm than good)** - *No empathy/human judgement* → unusual but valid cases get unfairly rejected → harms **individuals/applicants** → but a human can review borderline cases (appeal route). - *Algorithmic bias* → systems trained on biased data reproduce/amplify discrimination → harms **disadvantaged groups & society** → but bias can be audited and corrected, unlike hidden human prejudice. - *"Black box" / unclear accountability* → hard to explain or appeal a decision; unclear who is liable → harms **individuals & regulators** → but explainable-AI and logging can improve transparency.

**AGAINST (does more good than harm)** - *Speed and scale* → decisions made instantly on huge volumes of applications → benefits **businesses & consumers** (faster service) → but speed is worthless if the decisions are unfair. - *Consistency / no fatigue* → same rules applied to everyone, no tiredness or mood → benefits **society** (fairer in theory) → but only as fair as the data and rules behind it. - *Better outcomes in some domains* → e.g. medical diagnosis can spot patterns humans miss → benefits **patients** → but should support, not replace, the clinician.

**Stakeholders:** individuals/applicants · businesses/employers · disadvantaged groups · government/regulators · patients.

**Justified conclusion (takes a side, with a condition):** Automated decision-making does more good than harm **only if** it is used to *support* rather than fully replace human judgement, the training data is checked for bias, decisions are explainable, and there is always a route to human appeal. Without these safeguards, the harms (bias, lack of empathy, unaccountability) outweigh the benefits. A top-band answer reaches a clear, reasoned position rather than just stopping.

## Challenge box

**(a) Computer Misuse Act 1990** (the hacker gained unauthorised access to the servers) **and** the **Data Protection Act 2018 / GDPR** (the retailer failed in its duty of *integrity & confidentiality/security* by storing data unencrypted, and breached *storage limitation* by keeping it too long). *Two laws can apply to one event.* **(b)** The hacker has committed **Offence 1** (unauthorised access) and **Offence 2** (access *with intent* to commit a further offence — stealing/using the card details). *Accept that copying the data could also engage the DPA against whoever misuses it.*